CONDITIONS OF CONTRACT FOR BUILDING WORKS DESIGNED BY THE EMPLOYER
Project: Riverside Apartments, Ballincollig Road, Co. Cork (48 residential units, Blocks A and B)
Employer: Lee Valley Housing Partnership CLG
Contractor: Brennock Construction Limited
Employer's Representative: Fionnuala Hegarty, Hegarty Kiely Partnership
Contract Sum: EUR 14,620,000.00 (excluding VAT)
Starting Date: 6 July 2026 Date for Substantial Completion: 26 November 2027

1 DEFINITIONS AND INTERPRETATION
1.1 Definitions
In this Contract the following words have the following meanings:
"Change" means a change to the Works Requirements, including any addition, omission or alteration to the Works, or to the sequence, timing or method of working where specified by the Employer.
"Compensation Event" means an event listed in clause 10.3 for which the Contractor may be entitled to an adjustment of the Contract Sum.
"Delay Event" means an event listed in clause 8.6.
"Employer's Representative" or "ER" means the person named above or any replacement notified in writing by the Employer.
"Works Requirements" means the drawings, specifications and other documents listed in Schedule Part 1C, as changed in accordance with this Contract.
"Working Day" means any day other than a Saturday, a Sunday, a public holiday in Ireland, or a day within the period 21 December to 3 January (both dates inclusive).

1.3 Periods of time
Where a period is stated to run from or after a stated day or event, that day or the day of that event shall not be counted. Where the last day of a period stated in days (and not in Working Days) is not a Working Day, the period shall end on the next Working Day.

2 COMMUNICATIONS
2.1 Form of notices
Every notice, request, consent, proposal and instruction under the Contract shall be in writing. A notice given by the Contractor shall be sent by email to the ER at the address in clause 2.2, shall carry the words "CONTRACT NOTICE" and the relevant clause number in the subject line, and shall state that it is a notice under the Contract. Messages sent by instant messaging services, text message or recorded only in minutes of meetings are not notices under the Contract.

2.2 Addresses
ER: Fionnuala Hegarty, Hegarty Kiely Partnership, hegarty@hkp.example (copy to m.kiely@hkp.example).
Employer: Brendan Ahern, Lee Valley Housing Partnership CLG, b.ahern@lvhp.example.
Contractor: Ciaran Walsh, Contracts Manager, Brennock Construction Limited, c.walsh@brennock.example.

3 THE EMPLOYER'S REPRESENTATIVE
3.1 Role of the ER
The ER shall act for the Employer in administering the Contract. Only the ER may give instructions under the Contract.

3.2 Instructions
The ER may give instructions to the Contractor at any time, including instructions to carry out a Change. The Contractor shall comply with an instruction given by the ER in accordance with the Contract.

3.3 Oral instructions
If the ER gives an instruction orally, including on Site or at a meeting, the Contractor shall confirm the instruction in writing to the ER within 2 Working Days after it was given. An oral instruction that has not been confirmed in accordance with this clause shall not entitle the Contractor to an adjustment of the Contract Sum or an extension of time.

3.4 Directions from persons other than the ER

If the Contractor receives a direction or instruction relating to the Works from any person other than the ER, including the Employer, the Architect, the Engineer or a utility provider, the Contractor shall notify the ER in writing within 3 Working Days after receiving it, identifying the person and the direction, and shall not act on it until the ER has confirmed it as an instruction, except where immediate action is required for safety.

4 THE CONTRACTOR

4.1 General obligations

The Contractor shall execute and complete the Works in accordance with the Contract and the Works Requirements.

4.6 Site Conditions

If the Contractor encounters ground or other physical conditions on the Site that it considers could not reasonably have been foreseen by an experienced contractor at the date of tender, having regard to the Site Information, the Contractor shall give notice to the ER within 10 Working Days after becoming aware of the conditions and, where practicable, before the conditions are disturbed. The notice shall describe the conditions and the Contractor's proposals for dealing with them. Giving notice in accordance with this clause is a condition precedent to any entitlement in respect of the conditions.

5 DESIGN AND INFORMATION

5.2 Information release

The ER shall issue information to the Contractor in accordance with the Information Release Schedule. The Contractor shall request any further information it requires not less than 15 Working Days before the date by which it needs that information.

5.4 Discrepancies

If the Contractor becomes aware of an ambiguity, discrepancy or inconsistency in or between the documents forming the Works Requirements, it shall notify the ER within 5 Working Days after becoming aware of it. The ER shall instruct how the ambiguity, discrepancy or inconsistency is to be resolved.

8 TIME

8.2 Programme

The Contractor shall submit an updated programme to the ER with each interim payment application, showing actual progress and any delay to the Date for Substantial Completion.

8.3 Notice of delay

If the Contractor becomes aware that the progress of the Works is being or is likely to be delayed by a Delay Event, the Contractor shall give notice to the ER within 15 Working Days after becoming aware of the delay or likely delay, stating the Delay Event relied on. Giving notice in accordance with this clause is a condition precedent to any extension of time for that Delay Event.

8.4 Particulars of delay

Within 20 Working Days after giving a notice under clause 8.3, the Contractor shall submit to the ER full particulars of the delay and its effect on the programme, and the extension of time claimed.

8.5 Disruption

If the progress of any part of the Works is disrupted (whether or not completion is delayed) by an act or omission of the Employer, the ER or any other contractor or utility engaged by the Employer, the Contractor shall notify the ER within 5 Working Days after the disruption commences, and shall keep contemporaneous records of the labour and plant affected. Failure to notify in accordance with this clause shall disentitle the Contractor to any additional payment for the disruption.

8.6 Delay Events

The following are Delay Events: (a) a Change; (b) late issue of information in accordance with the Information Release Schedule; (c) Site conditions to which clause 4.6 applies; (d) an act or omission of the Employer, the ER or other contractors engaged by the Employer; (e) exceptionally adverse weather, being weather at the Site more severe than a 1 in 10 year event; (f) suspension instructed by the ER.

8.7 Liquidated damages

If the Works are not substantially complete by the Date for Substantial Completion, the Contractor shall pay liquidated damages at the rate of EUR 4,500 per week or part of a week.

9 CHANGES

9.1 Change Orders

The ER may instruct a Change by issuing a Change Order. The Contractor shall not make any Change except as instructed by a Change Order.

9.2 Contractor's notice of a Change

If the Contractor considers that an instruction, a revised drawing or specification, or any other communication from the ER or the Employer's design team requires a Change for which no Change Order has been issued, the Contractor shall give notice to the ER within 10 Working Days after receiving it, stating why it considers that a Change is required. Giving notice in accordance with this clause is a condition precedent to any adjustment of the Contract Sum for that Change.

9.3 Change proposals

Within 15 Working Days after a Change Order or a notice under clause 9.2, the Contractor shall submit a proposal for the adjustment of the Contract Sum and any extension of time, with supporting calculations.

10 CLAIMS

10.1 Claim notice

If the Contractor considers that it is entitled to an adjustment of the Contract Sum under any clause of the Contract, it shall give a claim notice to the ER as soon as practicable and in any case within 20 Working Days after becoming aware of the circumstances giving rise to the claim. A claim notice that is not given within this period shall bar the claim.

10.2 Claim particulars

Within 20 Working Days after giving a claim notice, the Contractor shall submit full particulars of the claim, including the amount claimed and supporting records.

10.3 Compensation Events

The following are Compensation Events: (a) a Change; (b) Site conditions to which clause 4.6 applies; (c) disruption to which clause 8.5 applies; (d) late issue of information by the ER.

11 PAYMENT

11.1 Interim payment applications

The Contractor shall submit an interim payment application to the ER not later than the 25th day of each month, setting out the value of work properly executed, materials on Site and Changes valued in accordance with the Contract.

11.2 Interim certificates

The ER shall issue an interim certificate within 10 Working Days after receiving an interim payment application.

11.3 Payment

The Employer shall pay the amount certified within 15 Working Days after the date of the interim certificate.

11.4 Retention

The Employer may retain 5 per cent of the value certified in each interim certificate until the total retention reaches 3 per cent of the Contract Sum. Half of the retention shall be released within 15 Working Days after Substantial Completion and the balance within 15 Working Days after the end of the Defects Period.

11.6 Subcontractor compliance

The Contractor shall not include in an interim payment application any amount for work executed by a subcontractor unless the subcontractor holds a current Relevant Contracts Tax determination, current employer's liability and public liability insurance, and its operatives hold valid Safe Pass cards.

12 DEFECTS

12.1 Defects Period

The Defects Period is 12 months from the date of Substantial Completion.

13 INSURANCE

13.1 Insurance requirements

The Contractor shall maintain, and shall ensure that each subcontractor maintains, employer's liability insurance with a limit of not less than EUR 13,000,000 and public liability insurance with a limit of not less than EUR 6,500,000 for any one occurrence.